

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Regina M. Rodriguez

Civil Action No.: 19-cv-01749-RMR-SKC
Courtroom Deputy: Stacy Libid

Date: March 21, 2022
Court Reporter: Terri Lindblom

Parties:

TITAN MANUFACTURING SOLUTIONS, INC.,
a Nevada corporation,

Plaintiff,

v.

NATIONAL COST, INC.,
a Florida corporation,
d/b/a National Tax Group,

Defendant.

Counsel:

Laurin D. Quiat
Jacob A. Bruner

Gregory S. Tamkin
Maral Shoaee

COURTROOM MINUTES

JURY TRIAL – DAY SIX

8:25 a.m. Court in session.

Court calls case. Appearances of counsel. Also present on behalf of Plaintiff is Brian Lefever. Also present on behalf of Defendant is Lee Ferry.

Discussion regarding jury instructions and verdict form.

ORDERED: Jury instructions are TAKEN UNDER ADVISEMENT.

Jurors present.

8:37 a.m. Redirect examination of Lee Ferry by Mr. Quiat.

Exhibits 3, 10, 19, 22, 56, 77, 93, 100, 110, 210, 224, and 268 are referenced.

9:13 a.m. Recross examination of Lee Ferry by Mr. Tamkin.

Exhibits 18, 19, 56, 77, 78, 110, 162, and 211 are referenced.

9:34 a.m. Additional examination of Lee Ferry by Mr. Quiat.

Witness excused.

Plaintiff rests.

Jurors excused.

9:37 a.m. Argument by Ms. Shoaee and Mr. Bruner regarding Defendant's oral Motion for Judgment as a Matter of Law Pursuant to Fed. R. Civ. P. 50.

ORDERED: Defendant's oral Motion for Judgment as a Matter of Law Pursuant to Fed. R. Civ. P. 50 is DENIED in part and TAKEN UNDER ADVISEMENT in part.

10:23 a.m. Court in recess.

10:31 a.m. Court in session.

Jurors present.

Defendant's witness, Brian Lefever, sworn.

10:37 a.m. Direct examination of Brian Lefever by Mr. Tamkin.

Exhibit 211A is admitted.

Exhibit 251 is referenced.

Demonstrative Exhibit 271 is admitted.

10:54 a.m. Cross examination of Brian Lefever by Mr. Quiat.

Exhibit 271 referenced.

Witness excused.

Defendant rests.

Jurors excused for lunch.

11:07 a.m. Argument by Mr. Bruner and Ms. Shoaee regarding Plaintiff's oral Motion for Judgment as a Matter of Law Pursuant to Fed. R. Civ. P. 50.

ORDERED: Plaintiff's oral Motion for Judgment as a Matter of Law Pursuant to Fed. R. Civ. P. 50 is TAKEN UNDER ADVISEMENT.

Jury instructions and verdict form are finalized.

11:34 a.m. Court in recess.

12:33 p.m. Court in session.

Jurors present.

Jury instructions are read to jurors by the Court.

1:25 p.m. Plaintiff's closing argument by Mr. Quiat.

1:54 p.m. Defendant's closing argument by Mr. Tamkin.

2:23 p.m. Plaintiff's rebuttal argument by Mr. Quiat.

Court Security Officer sworn.

Jurors excused to begin their deliberations.

Counsel confirms exhibits going to jurors.

2:32 p.m. Court in recess.

5:10 p.m. Court in session.

Court states it has received notice that the jury has two questions.

5:26 p.m. Jurors present.

The Court reminds jurors of the Juror Code Conduct.

ORDERED: Jurors are excused until March 22, 2022, at 8:00 a.m.

5:26 p.m. Court in recess.

Hearing continued.

Total in-court time: 05:16